

24CHCV03014 24CHCV03014

County: los-angeles

Division: Civil Law and Motion

Department: F49

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Case Number: 24CHCV03014 Hearing Date: July 29, 2026 Dept: F49

Dept. F49

Date: 7/29/26

Case Name: Xiomara Yamileth Angel Sanchez; Ean Morales;
and Elan Morales vs. MG Drywall Construction Inc.; Miguel Alejandro Garcia
Juarez; Francisco Garcia; Mario Garcia Malvais; and Does 1-50

Case No. 24CHCV03014

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 29, 2026

PETITION TO

APPROVE COMPROMISE OF DISPUTED CLAIM FOR MINOR

Los Angeles Superior

Court Case No. 24CHCV03014

Amended Petition filed: 6/13/26

MOVING PARTY: Plaintiff Elan Morales, by and through
his parent and guardian ad litem, Petitioner Preyser Giovanni Morales

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: Petitioner seeks the Court's approval of the settlement that his minor child, Plaintiff and Claimant, Elan Morales, reached with Defendant.

TENTATIVE RULING: The Petition is GRANTED.

BACKGROUND

This action arises from personal injuries allegedly sustained by Plaintiffs Xiomara Yamileth Angel Sanchez ("Sanchez"), Ean Morales ("Ean"), and Elan Morales ("Elan") (collectively, "Plaintiffs") when a vehicle operated by Defendant Miguel Alejandro Garcia Juarez ("Miguel") failed to yield the right of way to Plaintiffs and struck their vehicle, causing it to overturn. On August 21, 2024, Sanchez and minors Ean and Elan, by and through their guardian ad litem, Petitioner Giovanni Morales ("Petitioner"), initiated this action. Subsequently, on October 30, 2024, Plaintiffs filed the operative First Amended Complaint against Defendants MG Drywall Construction, Inc. ("MG"), Miguel, Francisco Garcia ("Francisco"), Mario Garcia Malvais ("Mario") (collectively, "Defendants"), and Does 1 through 50, alleging the following causes of action: (1) negligence, (2) negligent hiring, training, supervision, or retention, (3) negligent entrustment, and (4) negligent infliction of emotional distress.

On January 16, 2025, MG filed an Answer. On January 22, 2025, Miguel, Francisco, and Mario filed their joint Answer.

On February 25, 2026, Sanchez filed a Notice of Settlement of Entire Case.

On May 11, 2026, Petitioner filed a Petition for Approval of Compromise of Claim. On July 13, 2026, Petitioner filed this Amended Petition.

No opposition or objection has been

filed.

ANALYSIS

Rule/Requirement/Component

Application

Comments

Claimant (minor)

Elan Morales

DOB: 7/13/09, age: 17

Guardian ad Litem¿

Preyser Giovanni Morales

Parent, GAL status granted on 8/22/24

Settlement (Total)¿

\$150,000.00 (MC-350, ¶ 10a)¿¿

Injuries¿

“[R]ight rib fracture (fifth rib); right tibia fracture; lumbar spine injury ... ; right knee sprain ... ; and peroneal nerve injury” Claimant was also struck on the head when the vehicle’s airbag deployed. (MC-350, ¶ 6)

¿

Medical treatment received?¿

Claimant received orthopedic evaluation and physical therapy, including lumbar stabilization, knee rehabilitation, electrical stimulation, myofascial release, and massage therapy. (MC-350, ¶ 7.)

¿

Completely healed of injuries?¿

Yes. (MC-350, ¶ 8a)¿

Medical Expenses Incurred (Total)¿

\$15,334.32 (MC-350 ¶ 12a(1))¿

Medical Bills (Documentation)¿

Summary included. (MC-350, ¶ 12b(5).)

Outstanding medical payments owed from proceeds¿

\$9,788.66 (MC-350, ¶ 12a(4))¿

Includes total
expenses minus negotiated lien reductions.

Provider Liens (Documentation)¿

\$8,300.00 from medical providers. (MC-350, ¶12b(5)(a)(ii))

Insurer also
claims lien of \$1,488.66. (MC-350, ¶ 12b(2).)

Negotiated Lien Reductions?¿

\$5,049.44. (MC-350, ¶ 12a(3))¿

Insurer lien
reduction of \$496.22 also negotiated. (MC-350, ¶ 12b(2).)

Documentation of lien reductions¿

Yes. (MC-350 ¶ 12b(5).)

¿

Attorney Fees¿

\$37,500.00 (25% of \$150,000.00) (MC-350, ¶ 13a)

The Court finds
the requested fees to be reasonable.

Declaration of fees and copy of retainer (Cal. Rules of
Court, rule 7.955(b).)¿

Yes. (MC-350, Attach. 13a,
Alder Decl., ¶¶ 4-7; Attach. 17a)

Plaintiffs'
former counsel, Wilshire Law Firm, PLC, has not filed a fee request.

Litigation Costs¿

\$0.00 (MC-350, ¶ 13b)¿

Are the costs itemized and reasonable?¿

N/A. (MC-350, ¶ 13b)

Total to be paid to minor¿

\$102,711.34 (MC-350, ¶ 15)

Blocked account?¿

No. (MC-350, ¶ 18(b)(3).)

\$102,711.34 to be invested in a single-premium deferred
annuity, subject to withdrawal only on court authorization.

(MC-350, ¶ 18b(2); MC-351,
¶ 8b(2), Attach. 8b(2).)

Proposed order to approve compromise is congruent with

Petition?¿

Yes. (MC-351.)

Proposed order to deposit funds is congruent with
Petition?¿

N/A.¿

Disposition¿

GRANTED.

¿

After thoroughly reviewing the Amended Petition and
supporting documents, the Court finds that the proposed settlement is fair,
reasonable, and in the best interests of the minor. The Amended Petition is
GRANTED.

CONCLUSION

The Petition for Approval of Compromise of Claim, filed by Plaintiff Elan Morales, by and through his Guardian ad
Litem, Preyser Giovanni Morales, is GRANTED.

Moving party to give notice.